

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2025

BEFORE HER HONOR: SIE-A-NYENE G. YUOHCHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE

The Intestate Estate of Daniel W. Urey by and thru its)
Administrator, Edwin Urey, Kelvin Enterprise Incorporated et al.)
of Careysburg, Montserrado County, Liberia.....Informant)
Versus) BILL OF INFORMATION
His Honor Scheaplor R. Dunbar, Assigned Circuit Judge, Sixth)
Judicial Circuit, Civil Law Court, the Intestate Estate of)
Kargboyah by and thru its administrators, Frank D. Koko, Jeff)
Kollie, Kpenpah Y. Flomo and Issac Darway, all of Tarte Town)
Careysburg, Montserrado County, Liberia.....Respondents)

GROWING OUT OF THE CASE:

The Intestate Estate of Daniel W. Urey by and thru its)
Administrator, Edwin Urey, Kelvin Enterprise Incorporated et al.)
of Careysburg, Montserrado County, Liberia.....Appellant)
Versus) APPEAL
The Intestate Estate of Kargboyah by and thru its Administrator,)
Frank D. Koko, Jeff Kollie, Kpenpah Y. Flomo and Issac)
Darway, all of Tarte Town, Liberia.....Appellee)

Heard: March 26, 2025

Decided: May 28, 2025

MR. JUSTICE GBEISAY DELIVERED THE OPINION OF THE COURT

The Supreme Court has held in a long chain of Opinions that for a bill of information to be granted, the matter forming the basis of the information must have been pending before the Supreme Court or decided by it; that there must be an act tending to usurp the province of the Supreme Court; that there must exist some irregularities or obstruction in the execution of the Supreme Court's mandate; or that there must have been a refusal to carry out the Supreme Court's mandate. *Ahmadu v. Sirleaf, III and Bartu Dorley, v. Yessim El-Bim, et al.*, Supreme Court Opinion, March Term 2013; *Liberia Aggregate Corporation v. Taylor et al.*, 35 LLR 3, 8 (1988); *Massaquoi-Fahnbulleh v. Urey and Massaquoi*, 25 LLR, 432, 435-436, (1977).

The instant bill of information is premised on the alleged improper execution of a mandate of the Supreme Court issued on December 19, 2024. The informants, the Intestate Estate of Daniel W. Urey, by and through its Administrator, Edwin Urey along with Kelvin Enterprise Incorporated et al., substantially allege that the Co-respondent Judge, His Honor Shaepolar Dunbar is attempting to improperly execute the Mandate of the Supreme Court by ordering and coercing the Liberia Land Authority to send a particular surveyor, Mr. Tom W. Nimley to be the one to conduct the re-demarcative survey as ordered by the Supreme Court in order to determine the proper metes and bounds of both the informants and respondents land and put each party in possession of their respective land.

In their seven-count bill of information, the informants state that they were defendants in an action of ejectment instituted against them by the respondents herein, the Intestate Estate of Kargboyah, in the Sixth Judicial Circuit, Civil Law Court and the court after hearing arguments and considering the evidence presented by both parties, ruled that a demarcative survey should be conducted by a licensed and registered surveyor from the Liberia Land Authority to properly determine the metes and bounds of the parties respective lands as they are both claiming lands that overlap with each other; that they appealed this decision to the Supreme Court and the Supreme Court after hearing arguments and examining the evidence, ruled affirming the lower court's judgment; that pursuant to the judgment and mandate of Supreme Court, the Civil Law Court presided over His Honor Scheaplor R. Dunbar, issued a notice of assignment for conference where he informed the parties over objections from informants' lawyers that he will write the Liberia Land Authority (LLA) to submit a name of a particular surveyor to conduct the demarcative survey; that because of the respondent judge's adamant behavior in selecting a particular surveyor, Mr. Tom W. Nimely to be the one to conduct the demarcative survey, the informants filed a motion asking the judge to recuse himself and the said motion was denied by the respondent judge which denial was as a result of the respondent judge's intent or motive to deprive informants of their right under the law; that the respondent judge's action in insisting on a particular surveyor of his choice against the objections of informants through their legal counsel be the one to conduct the demarcative survey as ordered by the Supreme Court is wrong and improper and is contrary to the mandate of the Supreme Court issued on December 19, 2024. The informants pray this Court to grant their information and reverse the allegedly unlawful conduct of the Co-respondent Judge.

The Respondent, Intestate of Kargboyah by and through its Administrators, Abraham Barbour, Frank D. Koko et al., filed their resistance to the bill of information contending that

basis of the informants' allegation as alleged in the bill of information is nothing but an intent to delay the case and interfere with the implementation of the Supreme Court's Mandate as there is no legal basis for the filing of the said bill of information; that after the Mandate of the Supreme Court was read, the respondent judge determined that in order to successfully carry out the demarcation survey as ordered by the Supreme Court, the surveyor who conducted the first survey would be better situated to do the demarcation of the land between the parties since the said surveyor is still within the employ of the Liberia Land Authority as calling a new surveyor to do a demarcation of the land between the parties who was never a part of the initial survey would mean, conducting a new survey which was never the intention of the Supreme Court; that the informants demand for a new surveyor is a clever trick to delay the implementation of this Court's ruling as a different surveyor who did not do the initial survey will eventually end up with a new survey that may place an impasse on the implementation of the Mandate of the Supreme Court; that a bill of information will only lie as provided by the revised rules of the Supreme Court to stop a judge from executing a mandate of the Supreme Court in an improper manner or from preventing anyone from interfering with the judgment/mandate of the Supreme Court and that this is not the case in the instant case; that the respondent judge is not implementing the Mandate of the Supreme Court in an improper manner. The respondents then prayed this Court to deny and dismiss the bill of information and order that the surveyor who previously served as the chairman and conducted the first survey be the one to conduct the demarcation survey.

The question presented for our determination is whether a bill of information will lie under the facts and circumstances of this case?

Rule IV, Part 12 of the Revised Rules of the Supreme Court prescribes the office of bill information as follows:

"(a). A bill of information will lie to prevent a Judge or any Judicial Officer who attempts to execute the mandate of the Supreme Court in an improper manner from doing so with the Judgment and/or Mandate of the Supreme Court.

(b). A Bill of Information will also lie to prevent anyone whomsoever from interfering with the Judgment and/or Mandate of the Supreme Court.

To address the question presented, we must review the Mandate of the Supreme Court issued on December 19, 2024, and determine whether the conduct of the Co-respondent

Judge complained of by the informants is in conformance with or contrary to the wordings of the said Mandate.

The records show that on December 19, 2024, the Supreme Court disposed of an appeal which emanated from an action of ejectment filed by the Intestate Estate of Kargboyah by and thru its administrators, Messrs. Frank D. Koko, Jeff Kollie, Kpenpah Y. Flomo and Issac Darway against the Intestate Estate of Daniel W. Urey by and thru its Administrator, Edwin Urey along with Kelvin Enterprise Incorporated et al., before the Sixth Judicial Circuit Civil Law. The records in that case show that the case was heard and after arguments and consideration of all the evidence, the court ruled that both parties have the same grantor (the Republic of Liberia) and the land claimed by both parties are separate and in line with the metes and bounds of their respective deeds, except for minor error on both deeds, and that because of this, the court ordered a demarcative survey in order to properly set out the meters and bounds of each party land and put both parties in possession of their respective property. The decision of the Civil Law Court was appealed to the Supreme Court and after hearing the appeal, the Supreme Court delivered an Opinion in which it affirmed the decision of the Civil Law Court and ordered that a demarcative survey be carried out to put both parties in possession of their respective properties. The Judgment issued by the Supreme Court in the case reads:

"That where an investigative survey established that both parties have the same grantor (Republic of Liberia) and the land claimed by both the appellant and the appellee are separate and in line with the metes and bounds of their respective deeds, except for minor error on both deeds, the ruling of the trial court ordering demarcative survey and placing both parties in possession of their respective property ought to be confirmed."

"The ruling of the trial court ordering a demarcative survey and putting both parties in possession of their respective property is hereby confirmed and affirmed. The Clerk of this Court is ordered to send a mandate to the lower court commanding the judge therein to resume jurisdiction and give effect to the judgment emanating from this Opinion."
AND IT IS HEREBY SO ORDERED.

In sum, the Mandate issued by the Supreme Court on December 19, 2024, instructed the Sixth Judicial Civil Law Court to proceed to implement its own ruling and conduct a demarcative survey to correct the minor error on both parties' deeds and put both parties in possession of their respective property.

It is the execution of the above quoted Mandate of this Court by the Co-Respondent Judge that triggered the filing of the instant bill of information. The crux of the bill of information is

that the Co-respondent Judge, His Honor Scheaplor R. Dunbar, is improperly executing the Mandate of the Supreme Court by insisting that the same surveyor who carried out the first survey out of which the appeal to the Supreme Court grew should be the same one to carry out the issuing the demarcative survey. Informants have argued that by the insistence of the judge that the same surveyor that conducted the initial survey be the one to conduct the demarcative survey, the judge is improperly executing the mandate of the Supreme Court as they cannot be subjected to work with a surveyor who they are not comfortable with.

The question which flows out of the bill of information is, did the Supreme Court Mandate of December 19, 2024, order that the same surveyor who conducted the investigative survey be the one to conduct the demarcative survey? We think not.

As reproduced above in this Opinion, the Supreme Court Mandate issued on December 19, 2024, specifically commanded the Sixth Judicial Circuit, Civil Law Court to go ahead and enforce its previous ruling and order a demarcative survey and place both parties in possession of their respective property.

In keeping with the mandate above the sole task of the co-respondent judge was to order a demarcative survey and write the Liberia Land Authority to nominate a surveyor to serve as chairman of the board instead of specifically requesting a particular surveyor, especially where one of the parties (informants) have vehemently objected to the said surveyor to conduct the survey.

We are muddled about the co-respondent judge's insistence on using this particular surveyor over stout objections from the informants. The co-respondent judge may have his own reasons for insisting that the same surveyor who handled the investigative survey be the one to conduct the demarcative survey, but however pure and valid his reasons may be, he cannot insist on using this particular surveyor over objections from the informants, again especially where it is not an express mandate from this Court.

In sum, it is our considered Opinion that the Supreme Court Mandate of December 19, 2024, out of which this Bill of Information emanates, did not order that the same surveyor who conducted the investigative survey be the one to handle the demarcative survey and the co-respondent judge's insistence on having the said surveyor to conduct the investigative survey is improperly executing this Court's Mandate of December 19, 2024; therefore, the bill of information will lie.

Additionally, it is also our considered opinion that the role of any surveyor subsequently nominated by the Liberia Land Authority will be only for the conduct of the demarcative survey and not to conduct an investigative survey as the same has already been conducted and affirmed by this Court to be valid. The said surveyor's only charge will be to conduct a demarcative survey based upon the investigative survey previously conducted out of which the appeal to this Court grew from which we rendered an opinion out of which this bill of information grew.

WHEREFORE AND IN VIEW OF THE FOREGOING, the informants' bill of information is hereby granted, and the co-respondent judge is ordered to instruct the Liberia Land Authority to nominate a different surveyor based upon its own selection for the sole purpose of conducting the demarcative survey previously ordered by this Court. The Clerk of this Court is ordered to send a mandate to the lower court commanding the judge presiding therein to resume jurisdiction and give effect to the judgment emanating from this Opinion. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLORS NORRIS LESTER TWEAH AND JOHN A.A. GABRIEL APPEARED FOR THE INFORMANTS. COUNSELLOR MILTON D. TAYLOR OF THE LAW OFFICES OF TAYLOR & ASSOCIATES, INC., APPEARED FOR THE RESPONDENTS.

Information granted.